

SUNPOWER[®]

SunPower Financing Agreement

Anshuman Rudra, 498 PLAINVILLE AVE, UNIONVILLE, CT, (860) 515-4058
SAVKAT, INC

Lock in cleaner energy

\$0	2.9%	\$88	\$0.181	20
Due today	Annual Solar bill increase	Monthly payment (includes ACH discount)	Est. price per kWh (year 1)	Term

System Details	
Solar panels	390W (Model SPR-U-390-BLK-C-DC)
Panel count	14
System size	5.46 kW
Estimated year 1 production	5,821
Estimated electricity offset	95%

Get more with SunPower



90% production guarantee (reimbursed biennially if we ever fall short).



Repairs, maintenance and insurance handled by SunPower at no extra cost.



24/7 monitoring for your entire system puts power at your fingertips.



12-year warranty protection for roof damage incurred at installation.



Prepay or transfer this agreement at any time. Just call us and we'll help.



Date: January 16, 2023

Lessee

Anshuman Rudra
498 PLAINVILLE AVE
UNIONVILLE, CT 06085
(860) 515-4058

Lessor

SunPower Capital, LLC
Attn: SunPower Financing
8900 Amberglen Boulevard
Suite 325
Austin, Texas 78729
(800) 786-7693

Installer

SunPower Corporation, Systems
8900 Amberglen Boulevard, Suite 325
Austin, Texas 78729
(800) 786-7693
Contractor Registration No.
HIC.0645870

Your Leased System		Your Estimated Savings	
Solar Panels	Canadian Solar 390W (Model SPR-U-390-BLK-C-DC)	Pre-solar Monthly Electric Bill (Yr1)	\$169.67
Panel Count and System Size	14 Panels, 5.46 kW (DC), 5.376 kW (AC)	Estimated Monthly Electric Bill Savings (Yr1)	\$160.05
Inverter	Type H / SPWR-A4 (IQ 7HS)(14)	SunPower Monthly Lease After ACH Discount (Yr1)	\$88.02
Source of Performance Data	SunPower	Estimated Total Monthly Savings (Yr1)	\$72.03
Monitoring System	PVS6 Monitoring Kit	Estimated SunPower Lease Price per kWh (Yr1)	\$0.181
Racking Equipment	InvisiMount	Annual Solar Bill Increase (Yr1)	2.9%
Year 1 Production Estimate	5,821 kWh	Lease Term	Approximately 20 Years (240 calendar months)
Lease Term Production Estimate	102,327 kWh		
Estimated Electricity Offset	95%		

SunPower promises, We will...

- Insure the System and arrange for its repair and maintenance (including the inverter) at no additional cost to you as specified in the Lease.
- Provide a Production Guarantee and Limited Warranty, as specified in the Lease. **Please note that estimated savings are not guaranteed.** Savings estimates are based upon a number of factors, including some that are beyond our control, like Your actual energy usage and future utility rates.
- Provide 24/7 web-enabled monitoring at no additional cost to you, as specified in the Lease.
- Provide you a warranty of your roof against leaks.

What are your transfer choices during the term?

- If you move, you may transfer this Lease to the purchaser of your Home, as specified in the Lease.
- If you move, you may purchase the System from Us for an amount equal to the System's Fair Market Value, plus any other amounts that are specified in the Lease.

What are your choices at the end of the term?

- You may request us to have the System removed at no additional cost to you.
- You may renew the Lease, as specified in the Lease.
- Otherwise, the Lease will automatically renew and continue on a year-to-year basis, unless We notify you that we will remove the System at the end of the term.

1. INTRODUCTION

This solar lease (this "Lease") is the agreement between you and SunPower Capital, LLC (together with its successors and assigns, "Lessor," "We," "Us" or "Our"), covering the lease to you of the solar panel system (the "System") described below. Although the System will be installed at the installation location address listed above (the "Property" or your "Home") by the Installer identified above, this Lease is a lease only and not a contract for construction. The System will be installed at the Property by the installation contractor identified by Us. This Lease is up to sixteen (16) pages long and has up to six (6) exhibits depending on the state where you live. This Lease has disclosures required by the Federal Consumer Leasing Act and, where applicable, state law. Our repair and maintenance designee, SunPower Corporation, Systems has agreed to provide a limited warranty on the System as described more fully in the Production Guarantee and Limited Warranty (the "Limited Warranty"). The Limited Warranty is attached as **Exhibit A**. We will also provide you with a System user manual (the "Guide"), that contains important operation, maintenance, and service information.

This is a legally binding agreement, so please read everything carefully including all of the exhibits. By signing this Lease, you represent that you are either a citizen of the United States or not exempt from paying Federal income taxes. If you do not meet your contract obligations under this Lease, you may lose your rights to the System. If you have any questions regarding this Lease, please contact us at (800) 786-7693.

We will ensure our authorized installer (the "Installer") performs design, permitting, construction, installation, testing, and activation of the System on your Home in accordance with the following estimated schedule:

Approximate Start Date: 7/18/2023

Approximate Completion Date: 7/23/2023

You represent and warrant to Us that (a) you are the owner of the Property (that is, owner of so-called fee title, and not a tenant), (b) you occupy the Property, (c) any other owners of the Property have acknowledged this Lease by execution hereof, and (d) to the best of your knowledge, there are no conditions, concealed or otherwise, that would or may impede or delay the installation of the System or cause the Property to be unsuitable for the installation, including but not limited to dry rot, termites, or mold.

Shortly before the Lease Term Start Date, the Installer (together with the local utility, if necessary) will connect the System to the grid, test the operation of the System and train you in the use of the System. The Installer may perform such services by itself or through a competent subcontractor hired by the Installer, and approved by Us. IF THE SYSTEM AS INSTALLED DIFFERS FROM THE "SYSTEM DESCRIPTION" BELOW BUT INCLUDES SUBSTANTIALLY EQUIVALENT OR BETTER EQUIPMENT WITH EQUAL TO OR GREATER OUTPUT, YOU WILL NOT HAVE THE RIGHT TO REJECT OR TERMINATE THIS LEASE.

The Fannie Mae B2-3-04 Compliance information is attached as **Exhibit E**.

This Lease includes only a lease of the System and does not include any other structural improvements performed or completed by the Installer. The cost of any such other improvements will be billed separately by the Installer and will not be included in the monthly payments during the Lease Term set forth on **Exhibit B** attached hereto ("Monthly Payments") or otherwise provided for under this Lease. By initialing below, you confirm that you have made no payments to the Installer prior to executing this Lease.

Lessee's Initials:

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2. LEASE TERM

We agree to lease you the System for twenty (20) years (240 full calendar months), plus, if the Lease Term Start Date is not on the first day of a calendar month, the number of days left in that partial calendar month, including the Lease Term Start Date. We refer to this period of time as the "Lease Term." The Lease Term begins on the Lease Term Start Date. The "Lease Term Start Date" is the date upon which your utility approves interconnection of the System. We or the Installer will notify you by email when your System is ready to be turned on.

3. DESCRIPTION OF LEASED PROPERTY

Item
Maximum Rated Capacity of System: 5.46 kW DC
Photovoltaic Modules (module model and quantity): 14 Canadian Solar 390W (Model SPR-U-390-BLK-C-DC)
Inverter (brand and model number): Type H / SPWR-A4 (IQ 7HS)(14)
Racking (brand and model number(s)): InvisiMount
SunPower Monitoring system (model number): PVS6 Monitoring Kit

Please confirm by initialing below that the foregoing Description of Leased Property matches the system description in the proposal provided to you on January 16, 2023.

Lessee's Initials:

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4. PRICE AND PAYMENT TERMS

(a) Monthly Payments

The Monthly Payments section (set forth on Table 1 of **Exhibit B** attached hereto) describes your payment obligations under this Lease. Your first monthly payment of \$88.02 is due on the one-month anniversary of the Lease Term Start Date. If the Lease Term Start Date occurs after the 28th of the month, your first monthly payment will occur on the 1st of the second following month. For example, if the Lease Term Start Date is January 30, your first monthly payment will occur on March 1. SunPower reserves the right to update its billing systems from time to time and will notify you if your payment due date changes accordingly. You will receive a \$7.50 monthly discount if you agree to automatic Monthly Payments through your checking or savings account. You will **NOT** receive a \$7.50 monthly discount if you do not make automatic Monthly Payments through your checking or savings account. See **Exhibit D** for details.

(b) Additional Payment Requirements. In addition to the other amounts you agree to pay in this Lease, you agree to pay the following:

- (i) **Sale or Refinancing Fee:** If you sell or refinance your Home and We are asked or required to provide any cooperation in connection with the sale or refinancing, We may charge you the reasonable expenses We incur in connection with such cooperation;
- (ii) **Returned Check Fee:** \$15 (or such lower amount as required by law) for any check or withdrawal right that is returned or refused by your bank; and

- (iii) Late Fee: You will pay a late payment fee equal to the lesser of \$10, 5% of the unpaid portion of any payment that is not received by Us within 10 days after it is due, or the maximum amount allowed by state law.

(c) Taxes

You agree to pay any applicable sales, use, or excise taxes on the payments due under this Lease. If this Lease contains a purchase option, you agree to pay any applicable tax on the purchase price for the System. You also agree to pay as invoiced any applicable personal property taxes on the System that your local jurisdiction may levy. Your actual tax due will vary depending on changing tax rates over the term of this Lease. We have no responsibility to you for any increased real property taxes you may be subject to as a result of the installation of the System.

(d) Prepayment of Monthly Payments

- (i) At any time, you may make a Prepayment of all outstanding and remaining payments to be paid by You during the Initial Term. If you make a Prepayment, SunPower will retain all its obligations under this Lease.
- (ii) A "Prepayment" shall equal (1) any Monthly Payments due or unpaid, plus (2) the remaining Monthly Payments for Initial Term discounted by the lesser of (x) the prime rate plus 100 basis points (as published by the Wall Street Journal as of the last day of the calendar month prior to the date the pre-payment is made) and (y) 5%. Estimated Prepayments for each year of the Initial Term are shown in **Exhibit B**. A Prepayment quote can be obtained by calling Us at (800) 786-7693 or emailing SunPowerFinancing@sunpower.com.

(e) Acknowledgment

YOU AGREE THAT THE OBLIGATION TO PAY ALL MONTHLY PAYMENTS AND ALL OTHER AMOUNTS DUE UNDER THIS LEASE SHALL BE ABSOLUTE AND UNCONDITIONAL UNDER ALL CIRCUMSTANCES AND SHALL NOT BE SUBJECT TO ANY ABATEMENT, DEFENSE, COUNTERCLAIM, SETOFF, RECOUPMENT OR REDUCTION FOR ANY REASON WHATSOEVER, IT BEING THE EXPRESS INTENT OF THE PARTIES THAT ALL AMOUNTS PAYABLE BY YOU HEREUNDER SHALL BE AND CONTINUE TO BE PAYABLE IN ALL EVENTS INCLUDING BY YOUR HEIRS AND ESTATE AND, EXCEPT AS REQUIRED BY APPLICABLE LAW OR AS SET FORTH IN SECTIONS 8 (CONDITIONS PRIOR TO INTERCONNECTION OF THE SYSTEM) AND 28 (NOTICE OF RIGHT TO CANCEL), YOU HEREBY WAIVE ALL RIGHTS YOU MAY HAVE TO REJECT OR CANCEL THIS LEASE, TO REVOKE ACCEPTANCE OF THE SYSTEM, OR TO GRANT A SECURITY INTEREST IN THE SYSTEM.

5. LEASE OBLIGATIONS

(a) System Installation, Home and Property Maintenance

You agree to:

- (i) cooperate with Installer for the purpose of the Installation and interconnection of the System to your local electricity grid, including providing reasonable assistance to the Installer in obtaining permits as needed (including documentation related to net metering), obtaining any consent of a third-party required for the Installation (such as a homeowner's association), installing, using and maintaining electric lines, inverters and meters, and providing any authorizations necessary to interconnect the System to your electrical system and the grid;
- (ii) if the installation is to a roof, acknowledge and accept that any roof penetrations necessary to complete the installation of the System may void any existing warranty of the roof manufacturer or roof installer;
- (iii) make the monthly payments and all other payments set forth in **Exhibit B**;
- (iv) only have the System repaired pursuant to the Limited Warranty and reasonably cooperate when repairs are being made;
- (v) keep trees, bushes and hedges trimmed so that the System receives as much sunlight as it did when the Installer installed it;
- (vi) not modify your Home or the Property in a way that shades the System;
- (vii) be responsible for any conditions at your Home and Property that affect the installation (e.g., blocking access to the roof or removing a tree that is in the way);

- (viii) permit Us or our designee, after We give you reasonable notice, to inspect the System for proper operation as We reasonably determine necessary;
- (ix) use the System primarily for personal, family or household purposes, but not to heat a swimming pool;
- (x) not do anything, permit or allow to exist any condition or circumstance that would cause the System not to operate as intended at the Property;
- (xi) notify Us promptly if you think the System is not working properly, is damaged or appears unsafe, if the System is stolen, and prior to changing your power supplier;
- (xii) have anyone who has an ownership interest in your Home sign this Lease;
- (xiii) return any documents We send you for signature (like incentive claim forms) within seven (7) calendars days after receiving them;
- (xiv) if you are notified of any recall of the System or its components, cooperate with the de-installation and return of the System or affected component(s);
- (xv) not allow a judgment, tax lien, municipal charge or tax levy to be filed against the System and keep the System free and clear of all liens, claims, levies and legal processes not created by Us;
- (xvi) not turn the System on without Our permission;
- (xvii) take reasonable steps to prevent unauthorized access to the roof of your Home and prevent System vandalism;
- (xviii) maintain and make available, at your cost, a functioning Internet connection, via either one available wired Ethernet port and standard AC power outlet within eighty (80) feet of the System's AC/DC inverter(s), secure access to your wireless home internet, or, if necessary, the purchase of a SunPower cellular plan, at all times during the Lease Term;
- (xix) keep your SunPower Monitoring System connected at all times; and
- (xx) authorize Us to make inquiries concerning your credit history and standing from time to time. We may report information about your performance under this Lease to consumer reporting agencies. Late payments, missed payments or other defaults hereunder may be reflected in your credit report.

(b) System Construction:

The System will be installed at the Property by the Installer.

(c) Installation, Insurance, Repair and Our Obligations:

We agree to:

- (i) schedule the installation of the System at a mutually convenient date and time;
- (ii) design and procure the System according to written plans you review;
- (iii) notify you if the System design has to be materially changed so that you can review any such changes;
- (iv) give you reasonable notice when Installer or its contractors need to access the System and/or your Property;
- (v) keep your Property reasonably free from waste materials or rubbish caused by Installer or its contractors' activities during the installation process;
- (vi) require the Installer to ensure the removal of Installer's or its contractor's tools, construction/installation equipment, machinery, waste materials and rubbish from and around your Property prior to utility approval of the System;
- (vii) guarantee that any roof penetrations made for the System shall be completely weather-tight for the period of twelve (12) years;
- (viii) return your Property to a condition similar to its original condition at the completion of installation, excluding normal wear and tear (subject to Excluded Services performed pursuant to paragraph (d) below);

- (ix) require the Installer to carry adequate commercial general liability, commercial automobile liability, workers' compensation and any other insurance required by applicable laws and regulations. You may request from Installer evidence of a contractor's insurance coverage;
- (x) be solely responsible for damage caused to your Property, property of third parties, or bodily injury arising from the installation caused by Installer or its agents;
- (xi) insure the System against all damage or loss unless (1) that damage or loss is caused by your gross negligence; or (2) you intentionally damage the System. In cases where We bear the risk of loss, our sole obligation to you will be to arrange for the Installer to repair or replace the System to the extent required by the Limited Warranty and you must continue performing your obligations under this Lease (including the obligation to make Monthly Payments). Notwithstanding the foregoing, if We determine in Our sole discretion, that the System cannot be restored to its original condition, then We reserve the right to apply all insurance proceeds to your outstanding Monthly Payments due under this Lease and terminate this Lease; provided however, if you have prepaid any Monthly Payments that are due and payable after We determine that the System cannot be restored to its original condition, then you will be entitled to a portion of the available insurance proceeds to reimburse you for such prepaid Monthly Payments.
- (xii) measure the amount of power the System delivers to you, so long as you satisfy the Communication Requirements provided in the Limited Warranty;
- (xiii) ensure that the System will be repaired pursuant to the Limited Warranty by service providers licensed according to applicable law, and reasonably cooperate with you when arranging repairs; and
- (xiv) not put a lien on your Home or Property.

(d) Services not included in the Installation

This Lease does not include an obligation by Us or Installer to:

- (i) remove or dispose of any hazardous substances that currently exist on your Property;
- (ii) improve the construction of the roof of your Property to support the System;
- (iii) remove or replace existing rot, rust, or insect-infested structures;
- (iv) provide structural framing for any part of your Property;
- (v) pay for or correct construction errors, omissions or deficiencies by you or your contractors;
- (vi) pay for, remove or remediate mold, fungus, mildew or organic pathogens;
- (vii) upgrade your existing electrical service;
- (viii) install any smoke detectors, sprinklers or life safety equipment required by municipal code or inspectors as a result of the System installation;
- (ix) pay for the removal or re-location of equipment, obstacles or vegetation in the vicinity of the System;
- (x) pay for any costs associated with municipal design or architectural review, or other specialty permits (this includes cost to attend any public hearings, notification of neighbors or additional drawings required);
- (xi) paint electrical boxes or conduit at your Property; or
- (xii) move items unassociated with the System around your Property.

If an obligation listed as an exclusion in this paragraph (d) (an "Excluded Service") must be performed in order to properly complete the installation of the System, Installer will promptly notify you of the necessity of such Excluded Services. If appropriate, Installer will present a proposal of the costs to you for Installer to perform such Excluded Services. You agree to promptly either sign a separate contract for the Excluded Services with Installer, or to cause such Excluded Services to be completed by a separate contractor in accordance with Installer's installation schedule.

(e) Home Renovations or Repairs

If you want to make any repairs or improvements to the Property that could interfere with the System (such as repairing the roof where the System is located), you must (i) give Us at least 15 days' prior notice of your intent to repair or improve the Property such that We can (x) remove or otherwise protect and secure the System prior to commencement of such repairs or improvements and (y) reinstall the System after the repair or improvements have been completed, all at your sole cost and expense; and (ii) pay Us, or our designee if directed by Us, the cost of removal before beginning repairs or improvements on the Property.

(f) No Alterations

You agree that you will not (i) move the System, (ii) make any modifications, improvements, revisions or additions to the System, (iii) remove any markings or identification tags, or (iv) take any other action that could void the Limited Warranty on the System without Our prior written consent. If you make any modifications, improvements, revisions or additions to the System, they will become part of the System and shall be Our property.

(g) Access to the System

You grant to Us and Our employees, agents, service providers and contractors the right to reasonably access all of the Property as necessary for the purposes of performing Our obligations under this Lease, including but not limited to designing, installing, repairing or monitoring the System, or for enforcing Our rights under this Lease. We shall provide you with reasonable notice of Our need to access the Property. You shall ensure that our access rights are preserved and shall not interfere with or permit any third-party to interfere with such rights or access.

(h) Indemnity

To the fullest extent permitted by law, you shall indemnify, defend, protect, save and hold harmless Us, Our employees, officers, directors, agents, successors and assigns from any and all third-party claims, actions, costs, expenses (including reasonable attorneys' fees and expenses), damages, liabilities, penalties, losses, obligations, injuries, demands and liens of any kind or nature arising out of, connected with, relating to or resulting from your negligence, willful misconduct, or failure to comply with any of the terms or conditions of this Lease; provided that nothing herein shall require you to indemnify (1) any person or entity from its own negligence or willful misconduct or (2) Installer or any manufacturer of the equipment comprising the System except in connection with your negligence or willful misconduct. The provisions of this paragraph shall survive termination or expiration of this Lease.

6. WARRANTY

TO THE FULLEST EXTENT PERMITTED BY LAW, YOU UNDERSTAND THAT THE SYSTEM IS WARRANTED SOLELY UNDER THE LIMITED WARRANTY ATTACHED AS **EXHIBIT A**, AND THAT THERE ARE NO OTHER REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED, AS TO THE MERCHANTABILITY, FITNESS FOR ANY PURPOSE, CONDITION, DESIGN, CAPACITY, SUITABILITY OR PERFORMANCE OF THE SYSTEM OR ITS INSTALLATION. YOU CONFIRM THAT WHETHER THIS LEASE PRODUCES AN OVERALL ENERGY COST SAVINGS TO YOU DEPENDS ON CIRCUMSTANCES OUTSIDE OF OUR CONTROL AND THAT WE HAVE NOT PROMISED TO YOU THAT THIS LEASE WILL RESULT IN AN OVERALL ENERGY COST SAVINGS TO YOU. YOU ALSO UNDERSTAND THAT THE LIMITED WARRANTY IS PROVIDED BY A THIRD-PARTY AND WILL NOT AFFECT YOUR OBLIGATIONS UNDER THE LEASE.

By initialing below, you acknowledge the Production Guarantee and Limited Warranty attached as **Exhibit A** is your sole warranty as to the condition, design, capacity, suitability or performance of the System or its installation, as set forth above.

Lessee's Initials:

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7. NOT USED

8. CONDITIONS PRIOR TO INTERCONNECTION OF THE SYSTEM**(a) Our Obligation to Lease**

Our obligations to lease the System are conditioned on the following items having been completed to Our reasonable satisfaction:

- (i) completion of (A) the engineering site audit (a thorough physical inspection of the Property, including, if applicable, geotechnical work), (B) the final System design, and (C) real estate due diligence to confirm the suitability of the Property for the construction, installation and operation of the System;
- (ii) receipt of all necessary zoning, land use and building permits; and
- (iii) Your completion of any renovations, improvements or changes reasonably required at Your Home or on the Property (e.g., removal of a tree or roof repairs necessary to enable Us to safely install the System).

We may terminate this Lease prior to the interconnection of the System without liability if, in Our reasonable judgment, any of the above listed conditions will not be satisfied for reasons beyond Our reasonable control.

(b) Amendments, Your Right to Terminate for Material Changes

We may terminate this Lease if, in Our reasonable judgment, the installation of the System will not occur within 180 days after the date of this Lease being fully executed by all parties for reasons beyond Our reasonable control.

Both parties will have the right to terminate this Lease, without penalty or fee, if We determine after the engineering site audit of your Home that We have misestimated by more than ten percent (10%) any of (1) the System size, (2) the System's total cost or (3) the System's originally estimated annual production. Such termination right will expire at the earlier of (A) one (1) week prior to the scheduled System installation date (provided that We have given you at least two weeks' notice prior to the scheduled System installation date), and (B) one (1) month after We inform you in writing of the revised size, cost or production estimate. If neither party exercises their right to terminate this Lease following such 10% change, then any changes to the System will be documented in an amendment to this Lease. You authorize Us to make corrections to the utility paperwork to conform to this Lease or any amendments to this Lease We both sign.

(c) Post-Installation Changes

After the System has been installed, if We determine that the System will not produce the amount of energy estimated on Page 1 of this Lease, and We are unable to increase the System's production by increasing the System size or other commercially reasonable means, We may present to You a modification detailing reductions to both your Monthly Payments and the Production Guarantee set forth in Table A of **Exhibit A**. Any such modification will be presented to You no later than one hundred and eighty (180) days after System interconnection. The modification will be deemed accepted by You and incorporated as an amendment to this Lease on the earlier of (a) the date you sign the modification, and (b) thirty (30) days after the modification has been sent to You. Under no circumstances will this Section 8(c) (POST-INSTALLATION CHANGES) permit: (a) a reduction of your Monthly Payments and/or Production Guarantee by more than ten percent (10%); or (b) an increase of your Monthly Payments and/or Production Guarantee in any amount.

By initialing below, you acknowledge and that We may modify your Monthly Payments and Production Guarantee as set forth above.

Lessee's Initials:

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9. TRANSFER

You agree that We may assign this System and/or Lease to one of Our financing partners without your consent. Such an assignment will not change Our obligation to ensure that the System is maintained and repaired as set forth in the Limited Warranty. If requested by Us, you agree to execute and deliver to any such transferee, assignee or financing partner an acknowledgment and confirmation of your obligations under this Lease as may be reasonably requested by Us.

10. OWNERSHIP OF THE SYSTEM; TAX CREDITS AND REBATES

You agree that the System is removable equipment owned by SunPower, is Our personal property under the Uniform Commercial Code and not a fixture (or real property) regardless of whether it is attached to real property, and will remain Our personal property even after installation and through the end of the Lease Term. You also acknowledge that We have the right to file any UCC-1 financing statement or fixture filing that confirms Our interest in the System. You understand and agree that this is a lease and not a sale agreement. We own the System for all purposes, including any data generated from the System. If the System is located in California, you agree that We may record a "Notice of an Independent Solar Energy Producer Contract" with the applicable county recorder's office, pursuant to Section 2869 of the California Public Utilities Code. If the System is located in any other State, you consent to any regulatory or governmental filing that is consistent with this Lease and applicable law, including a formal notice of this Lease which, among other things, provides record notice that the System is not a fixture to the Property. You agree, at Our request, to notify any mortgagee or holder of a deed of trust on the Property of the installation and existence of the System and that the System is SunPower's personal property and not a fixture (or real property) and to use reasonable efforts to obtain the consent of any mortgagee(s) of the Property to this Lease.

YOU UNDERSTAND AND AGREE THAT ANY AND ALL TAX CREDITS, INCENTIVES, RENEWABLE ENERGY CREDITS, GREEN TAGS, CARBON OFFSET CREDITS, UTILITY REBATES OR ANY OTHER NON-POWER ATTRIBUTES OF THE SYSTEM ARE OUR PROPERTY, AND FOR OUR BENEFIT, USABLE AT OUR SOLE DISCRETION. WE SHALL HAVE THE EXCLUSIVE RIGHT TO ENJOY AND USE ALL SUCH BENEFITS, WHETHER SUCH BENEFITS EXIST NOW OR IN THE FUTURE. YOU AGREE TO REFRAIN FROM ENTERING INTO ANY AGREEMENT WITH YOUR UTILITY THAT WOULD ENTITLE YOUR UTILITY TO CLAIM ANY SUCH BENEFITS. FOR SYSTEMS LOCATED IN NEW YORK AND PENNSYLVANIA, RENEWABLE ENERGY CREDITS WILL BE RETAINED BY YOU. FOR SYSTEMS LOCATED IN CONNECTICUT, YOU AGREE TO ASSIGN RENEWABLE ENERGY CREDITS TO EVERSOURCE/UNITED ILLUMINATING. YOU AGREE TO REASONABLY COOPERATE WITH US SO THAT WE MAY CLAIM ANY TAX CREDITS, RENEWABLE ENERGY CREDITS, REBATES, CARBON OFFSET CREDITS OR ANY OTHER BENEFITS FROM THE SYSTEM. THIS MAY INCLUDE, TO THE EXTENT ALLOWABLE BY LAW, A REQUIREMENT FOR YOU TO ENTER INTO NET METERING AGREEMENTS, INTERCONNECTION AGREEMENTS, CREDIT PURCHASE AGREEMENTS, AND FILING RENEWABLE ENERGY/CARBON OFFSET CREDIT REGISTRATIONS AND/OR APPLICATIONS FOR REBATES OR OTHER INCENTIVES FROM THE FEDERAL, STATE OR LOCAL GOVERNMENT OR A LOCAL UTILITY AND GIVING THESE TAX CREDITS, RENEWABLE ENERGY/CARBON CREDITS, REBATES, INCENTIVES, OR OTHER BENEFITS TO US. WE HAVE NOT GIVEN YOU ANY INFORMATION OR ADVICE REGARDING ANY POSSIBLE TAX CONSEQUENCES OR BENEFITS UNDER THIS LEASE. YOU AGREE THAT YOU WILL NOT CLAIM, OR TAKE ANY ACTION, OR FAIL TO TAKE ANY ACTION, INCLUDING CLAIMING ANY TAX CREDITS RESPECTING THE SYSTEM ON ANY TAX RETURN, THAT MAY HARM OR INTERFERE WITH OUR RIGHTS WITH RESPECT TO SUCH CREDITS, REBATES OR OTHER BENEFITS.

11. PURCHASING THE SYSTEM

(a) Purchase Option. You have the option to purchase the System as follows:

- (i) Upon the fifth (5th) anniversary of the Lease Term Start Date;
- (ii) If you sell your Home at any time during the Lease Term;
- (iii) At the end of the Lease Term; or
- (iv) In the event of Our default pursuant to Section 16(b)(DEFAULT).

(b) Purchase Price. In each of (i), (ii) and (iii) above, the price you pay for the System will be the fair market value ("Fair Market Value") at the time of the Your purchase. The Fair Market Value will be determined by an independent appraiser hired by Us to estimate the value of a comparable in-service photovoltaic solar system in your state and utility service area. If the System is purchased prior to the fifth (5th) anniversary of the In-Service Date, the Fair Market Value will include the recapture of any federal tax credits.

(c) Purchase Terms. Any purchase of the System will be on an AS-IS, WHERE-IS basis and you will be responsible for payment of any sales taxes or similar other taxes, fees or charges imposed on you or Us by

governmental authorities in connection with such a sale and purchase. After purchase, We will provide you a bill of sale, the Lease will be terminated and neither You nor SunPower will have any remaining obligations. For clarity, this includes termination of all obligations regarding repair, maintenance or the Production Guarantee set forth in **Exhibit A**. If possible, We will assign to you any product and/or workmanship warranties still in effect for the System.

12. RENEWAL; REMOVAL AT END OF TERM

(a) Renewal; Automatic Renewal. If We have not provided you notice that We do not want to renew the Lease, no later than sixty (60) days prior to the end of the Lease Term or any Renewal Period (defined below), We will send you written notice of the terms ("Renewal Terms") on which the Lease may be renewed on a one-year basis (each year a "Renewal Period"). If you do not want to renew the Lease, then at least thirty (30) days prior to the end of the Lease Term, you must submit a written request that We remove the System. **If You neither (a) accept the Renewal Terms nor (b) submit a request for removal, this Lease will automatically renew on a year-to-year basis at a rate for electric energy equal to 10% less than the then current average rate charged by your local utility.**

(b) Removal of the System. We will remove the System within thirty (30) days after the expiration or termination of the applicable Lease Term or any Renewal Term.

13. SELLING YOUR HOME

(a) If you sell your Home you can either:

(i) Transfer this Lease and the Monthly Payments.

You may transfer this Lease if the person buying your Home (the "Home Buyer") signs a transfer agreement assuming all of your rights and obligations under this Lease. The Home Buyer must submit to a credit check for financial reporting purposes, but the result of that credit check will not impact Your ability to transfer this Lease to the Home Buyer. We will provide the transfer agreement and escrow instructions. If the sale of your Home closes in accordance with Our escrow instructions you will be released from your obligations under this Lease. If the Home Buyer defaults on this Lease and We have not yet received the signed transfer agreement, you will be responsible for his or her default.

(ii) Purchase the System.

If you are in compliance with your Lease obligations, you can purchase the System pursuant to the terms set forth in Section 11 (PURCHASING THE SYSTEM) above.

(b) Production Guarantee. If you transfer this Lease pursuant to Section 13(a)(i), We will determine whether there is a prorated Payment Amount (as defined in **Exhibit A**) due to You at the time of transfer. If a Payment Amount is due to You, We will send such Payment Amount to You within thirty (30) days after the Lease transfer. For example, if You transfer this Lease in month 6 of a Guarantee Period (as defined in **Exhibit A**) and We determine that there has been an underperformance during months 1 through 6, We will send you a Payment Amount for that period. The Home Buyer would then receive a Payment Amount for the remainder of the Guarantee Period, i.e. months 7 through 24, if applicable. From that point on, the Home Buyer's Production Guarantee will be based on the terms set forth in **Exhibit A**.

(c) You agree to give Us at least thirty (30) days' prior written notice of the sale of your Home.

(d) If you sell your Home and cannot comply with any of the options in paragraph 13(a) above, you will be in default under this Lease. This Section 13 (SELLING YOUR HOME) also applies to a Home sale by your estate or heirs.

(e) EXCEPT AS SET FORTH IN THIS SECTION, YOU WILL NOT ASSIGN, SELL, PLEDGE OR IN ANY OTHER WAY TRANSFER YOUR INTEREST IN THE SYSTEM OR THIS LEASE WITHOUT OUR PRIOR WRITTEN CONSENT. THE TERMS OF THIS LEASE WILL BE BINDING ON YOU AND YOUR HEIRS AND PERSONAL REPRESENTATIVES.

14. LOSS OR DAMAGE

(a) Unless you are grossly negligent or you intentionally damage the System, We will bear all of the risk of loss, damage, theft, destruction or similar occurrence to any or all of the System. Except as expressly provided in this Lease, no loss, damage, theft or destruction will excuse you from your obligations under this Lease, including the obligation to make Monthly Payments.

(b) If there is loss, damage, theft, destruction or a similar occurrence affecting the System, and you are not in default of this Lease, then you shall continue to timely make all Monthly Payments and pay all other amounts due under the Lease, and cooperate with Us to have the System repaired, at Our sole cost and expense.

15. LIMITATION OF LIABILITY

(a) No Consequential Damages

OUR LIABILITY TO YOU UNDER THIS LEASE SHALL BE LIMITED TO DIRECT, ACTUAL DAMAGES ONLY. YOU AGREE THAT IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR CONSEQUENTIAL, INCIDENTAL, PUNITIVE, EXEMPLARY, SPECIAL OR INDIRECT DAMAGES.

(b) Damages Cap

Except for claims under Section 5(h) (INDEMNITY), neither party's liability to the other will exceed an amount equal to the maximum amount that could be payable by you under Section 18 (EARLY TERMINATION LIABILITY), or with respect to property damage by Us, One Million Dollars (\$1,000,000).

16. DEFAULT

(a) You will be in default under this Lease if any one of the following occurs:

- (i) you fail to make any payment when it is due and such failure continues for a period of thirty (30) days;
- (ii) you fail to perform any material obligation that you have undertaken in this Lease (which includes doing something you have agreed not to do, like alter the System) and such failure continues for a period of fifteen (15) days after We provide written notice;
- (iii) you have provided any false or misleading financial or other information to obtain this Lease;
- (iv) you assign, transfer, encumber, sublet or sell this Lease or any part of the System without Our prior written consent;
- (v) you (i) make an assignment for the benefit of creditors, (ii) admit in writing your insolvency, (iii) file, or there is filed against you, a voluntary petition in bankruptcy, (iv) are adjudicated bankrupt or insolvent, or (v) undertake or experience any substantially similar activity;
- (vi) foreclosure proceedings are filed involving Your Home or you allow other creditors by legal process to take your money or property;
- (vii) the System is disabled or disconnected and you do not notify Us of such event after you learn of such event; or
- (viii) the System is intentionally altered, damaged or destroyed by you or your gross negligence, or you expose the System to seizure, confiscation, forfeiture or other involuntary transfer.

(b) We will be in default under this Lease if We fail to perform a material obligation under this Lease and do not initiate a remedy of such failure within a period of ninety (90) days after We receive notice of such failure.

17. REMEDIES IN CASE OF DEFAULT

(a) If this Lease is in default, We may take any one or more of the following actions. Where required by law, We will give you notice before taking any of these actions. We may:

- (i) terminate this Lease and your rights to possess and use of the System;
- (ii) suspend Our performance under this Lease;
- (iii) take any reasonable action to correct your default or to prevent Our loss (any costs We incur to do so will be added to the amount you owe Us and will be immediately due);

- (iv) proceed, by appropriate court action, to enforce performance of this Lease and to recover damages for your breach;
- (v) turn off or take back the System by legal process or self-help, but We may not disturb the peace or violate the law; or
- (vi) subject to Our agreement to arbitrate disputes under Section 19 (APPLICABLE LAW; ARBITRATION), use any other remedy available to Us in this Lease or by law.

(b) Subject to Section 18 (EARLY TERMINATION LIABILITY) with respect to your Early Termination Liability, you agree to repay Us for any reasonable amounts We pay to correct or cover your default. By choosing any one or more of the remedies in paragraph (a) above, We do not give up Our right to use another remedy. By deciding not to use any remedy should this Lease be in default, We do not give up Our right to use that remedy in case of a subsequent default.

18. EARLY TERMINATION LIABILITY

If We exercise our right under Section 17 (REMEDIES IN CASE OF DEFAULT) to terminate this Lease due to your default, We and you agree that, from the nature of this Lease, it would be impracticable and extremely difficult to ascertain the amount of actual damages caused by your default. Therefore, We and you agree that in the case of such termination, We shall be entitled to recover from you, the "Early Termination Liability," which is a sum equal to (i) the Monthly Payments that are unpaid for the year in which the default has occurred; plus (ii) the Fair Market Value; plus (iii) any accrued and unpaid late charges; plus (iv) any dishonored payment item fees; plus (v) in the case of a termination whereby the System is removed from your Property, any amounts We expend to dismantle, remove and recover the System; plus (vi) any other amounts then due to Us under the Lease; less (vii) the amount We receive (less a reasonable fee payable to Us for Our services in selling the System) upon disposition of the System (not to exceed the amount of the Early Termination Liability), or an amount to which We and you otherwise agree. You may obtain, at your expense, a professional appraisal by an independent third-party (agreed to by Us and you) of the value that could be realized through sale of the System at wholesale after the System has been removed from your Property which shall be final and binding on the parties. As described above in this Section 18 (EARLY TERMINATION LIABILITY), any proceeds We receive upon actual disposition of the System will reduce the Early Termination Liability payable by you.

19. APPLICABLE LAW; ARBITRATION

PLEASE READ THIS SECTION CAREFULLY. ARBITRATION REPLACES THE RIGHT TO GO TO COURT, INCLUDING THE RIGHT TO A JURY AND THE RIGHT TO PARTICIPATE IN A CLASS ACTION OR SIMILAR PROCEEDING. IN ARBITRATION, A DISPUTE IS RESOLVED BY AN ARBITRATOR INSTEAD OF A JUDGE OR JURY.

The laws of the state where your Home is located shall govern this Lease without giving effect to conflict of laws principles. You and We agree that any dispute, claim or disagreement between the parties (a "Dispute") shall be resolved exclusively by arbitration.

The arbitration, including the selecting of the arbitrator, will be administered by JAMS, under its Streamlined Arbitration Rules (the "Rules") by a single neutral arbitrator to be agreed upon by the parties or selected under the Rules within thirty (30) days after the commencement of the arbitration. The arbitration will be governed by the Federal Arbitration Act (Title 9 of the U.S. Code). Either party may initiate the arbitration process by filing the necessary forms with JAMS. To learn more about arbitration, you can call any JAMS office or review the materials at www.jamsadr.com. The arbitration shall be held in the location that is most convenient to your Home. If a JAMS office does not exist in the county where you live, then we will use another accredited arbitration provider with offices close to your Home.

If you initiate the arbitration, you will be required to pay the first \$125 of any filing fee. We will pay any filing fees in excess of \$125 and we will pay all of the arbitration fees and costs. If we initiate the arbitration, we will pay all of the filing fees and all of the arbitration fees and costs. To the extent not inconsistent with state or local law, we will each bear all of our own attorney's fees and costs except that you are entitled to recover your attorney's fees and costs if you prevail in the arbitration and the award you receive from the arbitrator is higher than Our last written settlement offer. This Section 19 (APPLICABLE LAW; ARBITRATION) shall govern to the extent it conflicts with the Rules. When determining whether your award is higher than Our last written settlement offer your attorney's fees and costs will not be included.

Only Disputes involving you and Us may be addressed in the arbitration. Disputes must be brought in the name of an individual person or entity and must proceed on an individual (non-class, non-representative) basis. The arbitrator will not

award relief for or against anyone who is not a party. Neither of us, nor any other person, may pursue a Dispute as a class action, class arbitration, private attorney general action or other representative action, nor may any such Dispute be pursued on your or Our behalf in any litigation in any court. Claims regarding any Dispute and remedies sought as part of a class action, class arbitration, private attorney general or other representative action are subject to arbitration on an individual (non-class, non-representative) basis, and the arbitrator may award relief only on an individual (non-class, non-representative) basis. This means that the arbitration may not address disputes involving other persons with disputes similar to the Disputes between you and Us.

The arbitrator shall have the authority to award any legal or equitable remedy or relief that a court could order or grant under this Lease. The arbitrator, however, is not authorized to change or alter the terms of this Lease or to make any award that would extend to any transaction other than yours. All statutes of limitations that are applicable to any dispute shall apply to any arbitration between us. The arbitrator will issue a decision or award in writing, briefly stating the essential findings of fact and conclusions of law.

BECAUSE YOU AND WE HAVE AGREED TO ARBITRATE ALL DISPUTES, NEITHER OF US WILL HAVE THE RIGHT TO LITIGATE THAT DISPUTE IN COURT, OR TO HAVE A JURY TRIAL ON THAT DISPUTE, OR ENGAGE IN DISCOVERY EXCEPT AS PROVIDED FOR IN THE RULES. FURTHER, YOU WILL NOT HAVE THE RIGHT TO PARTICIPATE AS A REPRESENTATIVE OR MEMBER OF ANY CLASS PERTAINING TO ANY DISPUTE. THE ARBITRATOR'S DECISION WILL BE FINAL AND BINDING ON THE PARTIES AND MAY BE ENTERED AND ENFORCED AS A JUDGMENT IN ANY COURT HAVING JURISDICTION, EXCEPT TO THE EXTENT IT IS SUBJECT TO REVIEW IN ACCORDANCE WITH APPLICABLE LAW GOVERNING ARBITRATION AWARDS. OTHER RIGHTS THAT YOU OR WE WOULD HAVE IN COURT MAY ALSO NOT BE AVAILABLE IN ARBITRATION.

By initialing below, you acknowledge and accept that you are agreeing to arbitrate all disputes arising out of or related to this Lease.

Lessee's Initials:

AP

20. WAIVER

Any delay or failure of a party to enforce any of the provisions of this Lease, including but not limited to any remedies listed in this Lease, or to require performance by the other party of any of the provisions of this Lease, shall not be construed to (a) be a waiver of such provisions or a party's right to enforce that provision; or (b) affect the validity of this Lease. If Customer includes more than one person, We may release one or more of you without releasing the other(s).

21. NOTICES

All notices under this Lease shall be given in writing and shall be by personal delivery, electronic mail, overnight courier, or certified, or registered mail, return receipt requested, and deemed received upon personal delivery, acknowledgment of receipt of electronic transmission, the promised delivery date after deposit with overnight courier, or five (5) days after deposit in the mail. Notices shall be sent to the person identified in this Lease at the addresses set forth in this Lease or such other address as either party may specify in writing. Each party shall deem a document sent via PDF as an original document.

We may engage a third-party service provider (a "Lease Administrator"). If We notify you that We have engaged a Lease Administrator, then after such notice (and until any future notice to the contrary) you must also furnish all notices and communications in connection with this Lease to the Lease Administrator, at the address (and, if applicable, e-mail address) specified to you by Us.

22. PERMISSION TO CONTACT

We may contact you by telephone, electronic or postal mail, or invite you to participate in surveys or focus groups, to discuss your experience with Us, Our affiliates, Our products and services, Our network of dealers/installers, service providers, and suppliers, and Our maintenance organization.

We may use any telephone number you provide Us, even if that number is for a cellular telephone and/or Our using the number results in charges to you.

23. ENTIRE AGREEMENT; CHANGES

This Lease contains the parties' entire agreement regarding the lease of the System. There are no other agreements regarding this Lease, either written or oral. Any change to this Lease must be in writing and signed by both parties. It is understood that (a) none of Our representatives has any power to change, modify or make any other terms or representations whatsoever than those herein stated, and (b) any representations made by Our representatives are superseded by terms of this Lease. If any portion of this Lease is determined to be unenforceable, the remaining provisions shall be enforced in accordance with their terms or shall be interpreted or rewritten so as to make them enforceable. If an exhibit to this Lease specific to a state, city or county conflicts with the terms of this Lease, that exhibit will govern with respect to Leases in that applicable state, city or county.

24. CUSTOMER DATA

For a copy of the SunPower Data Privacy Policy, please visit the following website:

<https://us.sunpower.com/privacy/residential-solar-financing>

By initialing below, you acknowledge your receipt of and opportunity to review the SunPower Data Privacy Policy.

Lessee's Initials:

AP

25. PUBLICITY

We will not publicly use or display any images of the System without your consent.

26. SURVIVAL

The provisions of this Lease regarding payment obligations, remedies, indemnities, governing law and arbitration, as well as all provisions that specifically provide for survival or for additional time periods, will survive the termination or expiration of this Lease.

27. FURTHER ASSURANCES; RULES OF CONSTRUCTION

You agree to cooperate in completing or executing documents or taking other actions necessary to affect the purposes of this Lease, including the preservation of Our interest in the System. In this Lease: (i) whenever the singular number is used, the same will include the plural and the neuter, masculine and feminine genders will include each other, as the context may require; (ii) the word "including" is construed in its broadest sense to mean "including without limitation" or "including, but not limited to"; (iii) references to agreements and other legal instruments include all subsequent amendments thereto, and changes to, and restatements or replacements of, such agreements or instruments; (iv) the words "shall" and "will" are used interchangeably and have the same meaning; and (v) the word "or" is not necessarily exclusive.

28. NOTICE OF RIGHT TO CANCEL

YOU, THE LESSEE, MAY CANCEL THIS LEASE AT ANY TIME PRIOR TO MIDNIGHT OF THE SEVENTH (7TH) CALENDAR DAY AFTER THE DATE YOU SIGN THIS LEASE. SEE THE ATTACHED NOTICE OF CANCELLATION FORM FOR AN EXPLANATION OF THIS RIGHT (ATTACHED HERETO AS EXHIBIT C).

By signing this Lease, you acknowledge you have read and understand your cancellation rights and the implications of cancellation, and you have been informed orally of your cancellation rights.

ACKNOWLEDGMENT OF ARBITRATION

I understand that this Lease contains an agreement to arbitrate. After signing this Lease, I understand that I will not be able to bring a lawsuit concerning any dispute that may arise which is covered by the arbitration provision, unless it involves a question of constitutional or civil rights. Instead, I agree to submit any such dispute to an impartial arbitrator.

I have read this Lease and the exhibits in their entirety and I acknowledge that I have received a complete copy of this Lease and the exhibits.

NOTICE TO THE LESSEE: This is a lease. You are not buying the solar power system. Do not sign this lease before you read it. You are entitled to a complete copy of this lease when you sign it.

Lessee's Name: Anshuman Rudra



Anshuman Rudra

1/16/2023

Lessor: SunPower Capital, LLC



Sherilyn M. Cano

1/19/2023

The Installer with respect to this Lease is:

SunPower Corporation, Systems

8900 Amberglen Boulevard, Suite 325

Austin, Texas 78729

(800) 786-7693

Contractor Registration No. HIC.0645870

Exhibit A (Limited Warranty)

PRODUCTION GUARANTEE AND LIMITED WARRANTY

1. INTRODUCTION

This Production Guarantee and Limited Warranty (this “Limited Warranty”) is an agreement made by SunPower Corporation, Systems (“Operator”) to provide you warranties on the System you have leased and warrant the output of the System you have leased. The System will be professionally installed by the duly licensed Installer at the address you listed in the agreement that this exhibit is appended to (the “Lease”). Capitalized terms in this **Exhibit A** will have the same meaning as the capitalized terms in the Lease unless they are differently defined in this **Exhibit A**. This Limited Warranty begins on Lease Term Start Date.

2. LIMITED WARRANTIES

(a) Limited Warranties

Operator warrants the System as follows:

(i) System Warranty

During the entire Lease Term, under normal use and service conditions, the System will be free from defects in workmanship or defects in, or a breakdown of, materials or components (the “System Warranty”);

(ii) Roof Warranty

Operator assigns to you the following roof warranty provided by the Installer: If installing the System requires penetrations to your Home’s roof during a System installation and thereby causes damages to areas of the roof, then such roof damage will be repaired for your benefit, at any time during the period from the date the Installer begins installation of System through twelve (12) years (the “Roof Warranty Period”); and

(iii) Repair Promise

During the entire Lease Term, Operator will honor the System Warranty and will arrange to repair or replace any defective part, material or component or correct any defective workmanship, at no cost or expense to you (including all labor costs), when you submit a valid claim to Operator or Lessor under this Limited Warranty (the “Repair Promise”). If Operator or a contractor retained by Operator damages your Home, your belongings, or your Property, Operator will arrange to repair the damage caused or pay you for the damage caused subject to the limitations of liability provided in Section 6 of this Limited Warranty. Operator’s service providers may use new or reconditioned parts when making repairs or replacements. Operator may also, at no additional cost to you, have its service providers upgrade or add to any part of the System to ensure that it performs according to the guarantees set forth in this Limited Warranty. Cosmetic repairs of the System that do not involve safety or performance shall be made at Operator’s discretion.

(b) Warranty Length

- (i)** The warranties in Sections 2(a)(i) and (a)(iii) above will start on the Lease Term Start Date (provided that Lessor has countersigned the Lease) and continue through the entire Lease Term. Thus, for as long as you lease the System from Lessor, you will have a System Warranty and Operator’s Repair Promise.
- (ii)** The Roof Warranty Period may be shorter than the System Warranty, as described in Section 2(a)(ii) above.
- (iii)** If you have assumed an existing Lease, then this Limited Warranty will cover you for the remaining balance of the existing Lease Term.

(c) Production Guarantee and Warranties**Production Guarantee**

Operator estimates that each Guarantee Period (as defined below), the System will generate the Production Guarantee (as defined below) of kilowatt-hours (kWh) in the table set forth below:

TABLE A

GUARANTEE PERIOD	PRODUCTION GUARANTEE (kWh)	GUARANTEED ENERGY PRICE PER kWh
Year 2	10,465	\$0.187
Year 4	20,878	\$0.199
Year 6	31,238	\$0.212
Year 8	41,547	\$0.226
Year 10	51,805	\$0.240
Year 12	62,011	\$0.255
Year 14	72,166	\$0.272
Year 16	82,271	\$0.289
Year 18	92,325	\$0.308
Year 20	102,329	\$0.328

- i. If, at the end of each successive twenty-four (24) month anniversary of your Lease Start Date, the Actual Biennial kWh (defined below) generated by the System is less than the Production Guarantee, then Operator will send you a payment in an amount equal to the difference between the Production Guarantee and the Actual Biennial kWh, multiplied by the Guaranteed Energy Price per kWh (defined below) ("Payment Amount") after such Payment Amount is equal to or greater than \$5.00 ("Minimum Payment Amount"), unless such Payment Amount is due and payable in the last year of the Lease Term, in which case there is no minimum dollar amount requirement to remit the Payment Amount to you. If a Payment Amount is due under this Limited Warranty, but the Minimum Payment Amount requirement has not been satisfied, then the Payment Amount will continue to roll over to the next twenty-four (24) month anniversary of your Lease Start Date until the Minimum Payment Amount has been reached. Operator will make that payment at the end of a Guarantee Period. You are responsible for ensuring that the System remains free of shading.

For example, if the first twenty-four (24) month period commences on October 1, 2024, and ends on September 30, 2026, and the energy the System actually generated is less than the energy the system was guaranteed to generate during such twenty-four (24) month period, Operator will pay you the difference between the Actual Biennial kWh and the Production Guarantee multiplied by the Guaranteed Energy Price per kWh. See the table below for a real-world example.

Example Production Guarantee	Example Actual Biennial kWh	Example Guaranteed Energy Price per kWh	Example Payment to You
9,500	9,000	\$0.10	\$50.00

- ii. If, at the end of each successive twenty-four (24) month anniversary of your Lease Start Date, the Actual Biennial kWh is greater than the Production Guarantee during any twenty-four (24) month period, this surplus will be carried over and will be used to offset any deficits that may occur in the future. If your System

produces more energy than the Production Guarantee, then this additional energy is yours at no additional cost.

- iii. **Defined Terms.** The following capitalized terms will have the below meanings when used in this Limited Warranty:

“Actual Biennial kWh” means the AC electricity produced by your System in kilowatt-hours measured and recorded by Operator during each successive twenty-four (24) month anniversary of your Lease Start Date, as measured by the hardware that Operator or the Installer installs and as communicated to Operator by you pursuant to the Communication Requirements (as defined below).

“Communication Requirements” means the following actions you must take for this Limited Warranty (and the possibility of credit) to be available in a Guarantee Period: (a) establish communication with Operator via your home's internet connection; and (b) maintain your Internet connection, at your cost, so that Operator's hardware can transmit information about the System's electricity production for at least two consecutive hours at least once each month in that Guarantee Period, and at least once within thirty (30) days after the end of the Guarantee Period.

“Guarantee Period” is each successive period of a 24-month anniversary from the date you first establish Internet communication with Operator after the Lease Term Start Date, as described below (**“Initial Communication Date”**), to the next 24-month anniversary of the Initial Communication Date. As per the Communication Requirements, if a period of one calendar month passes without a two-hour period of communication, the resumption of communication for at least two consecutive hours, whenever it occurs, will establish a new Initial Communication Date. Because the performance of the System will degrade over time, if the Initial Communication Date is between 12 and 36 months after the Lease Term Start Date, the Production Guarantee for that Guarantee Period will be the amount listed for Guarantee Period 2 rather than Guarantee Period 1 (and for each successive Guarantee Period will be the amount listed as the next Guarantee Period, to the end of the Lease Term). Similarly, if the Initial Communication Date is between 36 months and 60 months after the Lease Term Start Date, the Production Guarantee for that Guarantee Period will be the amount listed for Guarantee Period 3, and so on for each successive Guarantee Period to the end of the Lease Term.

“Guaranteed Energy Price per kWh” is the value set forth on Table A of this Limited Warranty for the applicable Guarantee Period.

“Production Estimate” for a Guarantee Period is the estimated cumulative production made by Operator using details related to the installation of the System, including but not limited to, typical meteorological year data, equipment efficiency, roof pitch, and orientation.

“Production Guarantee” is 90% of the Production Estimate for a Guarantee Period made by Operator. The Production Guarantee for each System for each Guarantee Period is in Table A.

- iv. **Contingency for Lost Data.** In the event of hardware, communication, or other failure affecting Actual Biennial kWh retrievable from the SunPower Monitoring System, Operator will make commercially reasonable efforts to resolve the failure in a timely manner and the calculations in this Section 2 will be adjusted to compensate for such lost data during such period of failure. Operator will use commercially reasonable methods to estimate the missing kWh based on utility bills or other available information and such estimate will be included in the calculations under this Section 2 for such period. In the event that no such information is reasonably accessible, Operator will make the adjustment based on the original kWh expectation attributable to such period. This section states Operator's sole liability, and your exclusive remedy, for any shortfall in Actual Biennial kWh arising from any equipment failure or lost data relating to the SunPower Monitoring System.

(d) Making a Claim; Transferring this Warranty

(i) Claims Process

You can make a claim by:

- A. emailing Operator at the email address in Section 7 below; or
- B. writing Operator a letter and sending it via overnight mail with a well-known service at the address in Section 7 below.

(ii) Transferable Limited Warranty

Operator will accept and honor any valid and properly submitted claim made during the Lease Term by any person to whom you properly transfer the Lease.

(e) Exclusions and Disclaimer

Operator's obligations to provide the guarantee provided in this Limited Warranty will cease and the limited warranties and guarantee provided in this Limited Warranty do not apply to any lost power production or any repair, replacement, or correction required due to the following:

- (i) someone other than Operator, Installer, or a subcontractor specifically approved by Operator or Installer (an "Approved Subcontractor") installed, constructed, tested, removed, re-installed, or repaired the System;
- (ii) a power or voltage surge caused by someone other than Operator or Installer, including a grid supply voltage outside of the standard range specified by the local utility or the System specifications or as a result of a local power outage or curtailment;
- (iii) destruction or damage to the System or its ability to safely produce energy not caused by Operator, Installer, or Approved Subcontractor while servicing the System (e.g. if a tree falls on the System not due to any of Operator's negligence or that of Installer);
- (iv) the System is prevented from operating due to local utility or public utilities commission;
- (v) your failure to perform, or breach of, your obligations under the Lease (e.g., you modify or alter the System);
- (vi) your breach of this Limited Warranty, including you being unavailable to provide access or assistance to Operator and their service providers in diagnosing or repairing a problem, or your failing to maintain the System as stated in the Guide;
- (vii) any Force Majeure Event (as defined below);
- (viii) a change in usage of the Property or any buildings at or near such Property that may affect insolation without Lessor's or Operator's prior written approval;
- (ix) shading from foliage that is new growth or is not kept trimmed to its appearance on the date the System was installed;
- (x) any System failure or lost production not caused by a System defect (e.g., the System is not producing power because it has been removed to make roof repairs or you have required Operator or Approved Subcontractor to locate the inverter in a non-shaded area); or
- (xi) theft of the System (e.g., if the System is stolen, the System will be replaced per the Lease, but you will not be repaid for the power it did not produce).

This Limited Warranty gives you specific rights, and you may also have other rights which vary from State to State. This Limited Warranty does not warrant any specific electrical performance of the System, other than that described above.

THE LIMITED WARRANTIES DESCRIBED IN SECTIONS 2(A) AND (C) ABOVE ARE THE ONLY EXPRESS WARRANTIES MADE BY OPERATOR WITH RESPECT TO THE SYSTEM. OPERATOR HEREBY DISCLAIMS, AND ANY BENEFICIARY OF THIS LIMITED WARRANTY HEREBY WAIVES ANY WARRANTY WITH RESPECT TO ANY COST SAVINGS FROM USING THE SYSTEM. SOME STATES DO NOT ALLOW SUCH LIMITATIONS, SO THE ABOVE LIMITATIONS MAY NOT APPLY TO YOU.

3. OPERATOR'S STANDARDS

For the purpose of this Limited Warranty, the standards for Operator's performance, and that of Approved Subcontractors, will be (i) normal professional standards of performance within the solar photovoltaic power generation industry in the relevant market; and (ii) Prudent Electrical Practices. "Prudent Electrical Practices" means those practices, as changed from time to time, that are engaged in or approved by a significant portion of the solar power electrical generation industry operating in the United States to operate electric equipment lawfully and with reasonable safety, dependability, efficiency and economy.

4. SYSTEM REPAIR OR REMOVAL

- (a) You agree that if (i) the System needs any repairs that are not the responsibility of Operator under this Limited Warranty, or (ii) the System needs to be removed and reinstalled to facilitate remodeling of your Home, you will have Operator, or another similarly qualified service provider approved by Lessor or Operator, perform such repairs, removal and reinstallation at Your expense.
- (b) If you want to return the System to Lessor under Section 12 of the Lease, then Lessor or Operator will arrange to remove the System at no cost to you. Operator will arrange to return your Home's roof area within three inches of the mounting penetrations to a waterproof condition. You agree to reasonably cooperate with Lessor, Operator, and Approved Subcontractors in removing the System including providing necessary space, access and storage, and Lessor or Operator will reasonably cooperate with you to schedule removal in a time and manner that minimizes inconvenience to you.

5. FORCE MAJEURE

If Operator is unable to perform all or some of its obligations under this Limited Warranty because of a Force Majeure Event, Operator will be excused from whatever performance is affected by the Force Majeure Event, provided that:

- (a) Lessor or Operator, as soon as is reasonably practical, give you notice describing the Force Majeure Event;
- (b) Operator's suspension of its obligations is of no greater scope and of no longer duration than is required by the Force Majeure Event (i.e., when a Force Majeure Event is over, Lessor or Operator will arrange to make repairs); and
- (c) None of Operator's obligations that arose before the Force Majeure Event that could and should have been fully performed before such Force Majeure Event are excused as a result of such Force Majeure Event.

"Force Majeure Event" means any event, condition or circumstance beyond the control of and not caused by Operator's fault or negligence. It shall include, without limitation, failure or interruption of the production, delivery or acceptance of power due to: an act of god; war (declared or undeclared); pandemic (including governmental acts or orders related to COVID-19); sabotage; riot; insurrection; civil unrest or disturbance; military or guerilla action; terrorism; economic sanction or embargo; civil strike, work stoppage, slow-down, or lock-out; explosion; fire; earthquake; abnormal weather condition or actions of the elements; hurricane; flood; lightning; wind; drought; the binding order of any governmental authority (provided that, with respect to orders not related to health or safety, such order has been resisted in good faith by all reasonable legal means); the failure to act on the part of any governmental authority (provided that such action has been timely requested and diligently pursued) or changes in law passed by any governmental authority (provided that such changes relate specifically to the design, construction, installation, interconnection or operation of any of the System that is implemented after the Lease Term Start Date that materially and adversely affects Operator's ability to perform its obligations); unavailability of power from the utility grid, equipment, supplies or products (but not to the extent that any such availability of any of the foregoing results from Operator's failure to have exercised reasonable diligence); power or voltage surge caused by someone other than Operator or an Approved Subcontractor, including a grid supply voltage outside of the standard range specified by your utility; and failure of equipment not utilized by Operator or under Operator's control (not including the System – that is, defective or faulty components of the System are not a Force Majeure Event).

6. LIMITATIONS ON LIABILITY

(a) No Consequential Damages

YOU MAY RECOVER ONLY DIRECT DAMAGES, INCLUDING THOSE AMOUNTS DUE PURSUANT TO SECTIONS 2(C) AND 6(C) UNDER THIS LIMITED WARRANTY, AND IN NO EVENT SHALL LESSOR, OPERATOR, OR ITS AGENTS OR APPROVED SUBCONTRACTORS BE LIABLE TO YOU OR YOUR ASSIGNS FOR SPECIAL, INDIRECT, PUNITIVE, EXEMPLARY, INCIDENTAL OR CONSEQUENTIAL DAMAGES OF ANY NATURE. SOME STATES DO NOT ALLOW THE EXCLUSION OR LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES, SO THE ABOVE LIMITATION MAY NOT APPLY TO YOU.

(b) Limitation of Duration of Implied Warranties

ANY IMPLIED WARRANTIES, INCLUDING THE IMPLIED WARRANTIES OF FITNESS FOR A PARTICULAR PURPOSE AND MERCHANTABILITY ARISING UNDER STATE LAW, SHALL IN NO EVENT EXTEND PAST THE EXPIRATION OF ANY WARRANTY PERIOD IN THIS LIMITED WARRANTY. SOME STATES DO NOT ALLOW LIMITATIONS ON HOW LONG AN IMPLIED WARRANTY LASTS, SO THE ABOVE LIMITATION MAY NOT APPLY TO YOU.

(c) Limit of Liability

Notwithstanding any other provision of this Limited Warranty to the contrary, Lessor or Operator's total liability arising out of, or relating to, this Limited Warranty shall in no event:

- (i) For System replacement: exceed the greater of (a) the sum of the Monthly Payments over the term of the Lease and (b) the original cost of the System; and
- (ii) For damages to your Home, belongings and Property: exceed one million dollars (\$1,000,000).

7. NOTICES

All notices under this Limited Warranty shall be made in the same manner as set forth in the Lease to the addresses listed below:

TO LESSOR: SunPower Capital, LLC
c/o SunPower Corporation, Systems
8900 Amberglen Boulevard, Suite 325
Austin, TX 78729
Attention: SunPower Financing
Telephone: (800) 786-7693
Email: SunPowerFinancing@sunpower.com

TO YOU: At the billing address in the Lease or any subsequent billing address you provide.

8. ASSIGNMENT AND TRANSFER OF THIS LIMITED WARRANTY

Operator may assign its or Lessor's rights or obligations under this Limited Warranty to a third-party without your consent, provided that any assignment of Operator's or Lessor's obligations under this Limited Warranty shall be to a party professionally and financially qualified to perform such obligation. This Limited Warranty protects only the person who leases the System. Your rights and obligations under this Limited Warranty will be automatically transferred to any person to whom you properly transfer the Lease. This Limited Warranty contains the parties' entire agreement regarding the limited warranty and production guarantee of the System.

EXHIBIT B (Lease Payments)**Table 1****Monthly Lease Payments and Estimated Prepayments**

Monthly Lease Payments – Contract Year	Monthly Payment (after Automatic Payment Discount)	Estimated Prepayment *
Year 1:12 Monthly Lease Payments	\$88.02	\$16,718
Year 2:12 Monthly Lease Payments	\$90.57	\$16,498
Year 3:12 Monthly Lease Payments	\$93.20	\$16,236
Year 4:12 Monthly Lease Payments	\$95.90	\$15,929
Year 5:12 Monthly Lease Payments	\$98.68	\$15,575
Year 6:12 Monthly Lease Payments	\$101.54	\$15,170
Year 7:12 Monthly Lease Payments	\$104.49	\$14,710
Year 8:12 Monthly Lease Payments	\$107.52	\$14,191
Year 9:12 Monthly Lease Payments	\$110.64	\$13,610
Year 10:12 Monthly Lease Payments	\$113.85	\$12,963
Year 11:12 Monthly Lease Payments	\$117.15	\$12,245
Year 12:12 Monthly Lease Payments	\$120.54	\$11,452
Year 13:12 Monthly Lease Payments	\$124.04	\$10,578
Year 14:12 Monthly Lease Payments	\$127.64	\$9,618
Year 15:12 Monthly Lease Payments	\$131.34	\$8,568
Year 16:12 Monthly Lease Payments	\$135.15	\$7,420
Year 17:12 Monthly Lease Payments	\$139.07	\$6,169
Year 18:12 Monthly Lease Payments	\$143.10	\$4,809
Year 19:12 Monthly Lease Payments	\$147.25	\$3,332
Year 20:12 Monthly Lease Payments	\$151.52	\$1,732

*Estimated Prepayment assumes that a Prepayment is made at the first month of a contract year and that no payments are outstanding. The actual Prepayment will be based on the month that the Prepayment is made: if the Lease Term Start Date is January 1, the estimated Prepayment assumes that the Prepayment is also made on January 1 of the relevant contract year. If, for example, the Prepayment is made on June 1, the actual Prepayment will be calculated based on outstanding and remaining payments at that time. A Prepayment quote can be obtained by calling Us at (800) 786-7693 or emailing SunPowerFinancing@sunpower.com.

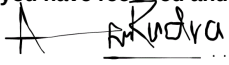
Federal Consumer Leasing Act Disclosures

Amount Due at Lease Signing or Delivery	Monthly Payments	Other Charges	Total of Payments
The Solar Incentive Amount (if applicable) \$0.00	Your first monthly payment of \$88.02 is due on the one-month anniversary of the Lease Term Start Date¹. If the Lease Terms Start Date occurs after the 28th of the month, your first monthly payment will occur on the 1st of the second following month. For example, if the Lease Term Start Date is January 30, your first monthly payment will occur on March 1. Your first monthly payment will be followed by: 11 monthly payments of \$88.02 12 monthly payments of \$90.57 12 monthly payments of \$93.20 12 monthly payments of \$95.90 12 monthly payments of \$98.68 12 monthly payments of \$101.54 12 monthly payments of \$104.49 12 monthly payments of \$107.52 12 monthly payments of \$110.64 12 monthly payments of \$113.85 12 monthly payments of \$117.15 12 monthly payments of \$120.54 12 monthly payments of \$124.04 12 monthly payments of \$127.64 12 monthly payments of \$131.34 12 monthly payments of \$135.15 12 monthly payments of \$139.07 12 monthly payments of \$143.10 12 monthly payments of \$147.25 12 monthly payments of \$151.52 each due on the same date of the month as the first monthly payment. The total of your monthly payments is \$28,094.36° OR If the Lease will be prepaid in full, full prepayment of the Lease in the amount of \$0.00 is due on the date the first monthly payment is due as first described above.	(Not part of your monthly payment) (If you cancel your automatic withdrawal, your \$7.50 ACH monthly benefit reflected in the Monthly Payments column will cease.) \$ _____ \$ _____ Total \$ _____	(The amount you will have paid by the end of the Lease) \$28,094.36°
Purchase Option at End of Lease Term. At the end of the Lease Term you will have the option to purchase the System for the Fair Market Value. The Fair Market Value will be determined by an independent appraiser hired by Us to estimate the value of a comparable in-service photovoltaic solar system in your state and utility service area. If the System is purchased prior to the fifth (5th) anniversary of the In-Service Date, the Fair Market Value will include the recapture of any federal tax credits. *e means an estimate inclusive of sales and use tax.			

¹ The Lease Term Start Date is defined in the Lease as the date upon which Your utility approves interconnection of the System.

THE SYSTEM IS OWNED BY SUNPOWER CAPITAL, LLC

You acknowledge that you have received and read these disclosures prior to the receipt of the Lease:

Lessee's Signature: 

Name: Anshuman Rudra

EXHIBIT C (Notice of Cancellation - LESSOR COPY)

NOTICE OF CANCELLATION

1/19/2023

(Date of Lease)

You may CANCEL this transaction, without any Penalty or Obligation, within SEVEN CALENDAR DAYS from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within TEN CALENDAR DAYS following receipt by the seller of your Notice of Cancellation, and any security interest arising out of the transaction will be canceled.

If you cancel, you must make available to the seller at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale, or you may, if you wish, comply with the instructions of the seller regarding the return shipment of the goods at the seller's expense and risk.

If you do make the goods available to the seller and the seller does not pick them up within twenty (20) days after the date of your Notice of Cancellation, you may retain or dispose of the goods without any further obligation. If you fail to make the goods available to the seller, or if you agree to return the goods to the seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail or deliver a signed and dated copy of this Cancellation Notice or any other written notice, or send a telegram to:

SunPower Capital, LLC, at 8900 Amberglen Boulevard, Suite 325, Austin, TX 78729, USA

NOT LATER THAN MIDNIGHT OF

1/26/2023

I HEREBY CANCEL THIS TRANSACTION.

_____ [Date].

Lessee's Signature:

Please print name: _____

EXHIBIT C (Notice of Cancellation – LESSEE/CUSTOMER COPY)

NOTICE OF CANCELLATION

1/19/2023

(Date of Lease)

You may CANCEL this transaction, without any Penalty or Obligation, within SEVEN CALENDAR DAYS from the above date.

If you cancel, any property traded in, any payments made by you under the contract or sale, and any negotiable instrument executed by you will be returned within TEN CALENDAR DAYS following receipt by the seller of your Notice of Cancellation notice, and any security interest arising out of the transaction will be canceled.

If you cancel, you must make available to the seller at your residence, in substantially as good condition as when received, any goods delivered to you under this contract or sale, or you may, if you wish, comply with the instructions of the seller regarding the return shipment of the goods at the seller's expense and risk.

If you do make the goods available to the seller and the seller does not pick them up within twenty (20) days after the date of your Notice of Cancellation, you may retain or dispose of the goods without any further obligation. If you fail to make the goods available to the seller, or if you agree to return the goods to the seller and fail to do so, then you remain liable for performance of all obligations under the contract.

To cancel this transaction, mail or deliver a signed and dated copy of this Cancellation Notice or any other written notice, or send a telegram to:

SunPower Capital, LLC, at 8900 Amberglen Boulevard, Suite 325, Austin, TX 78729, USA

NOT LATER THAN MIDNIGHT OF

1/26/2023

I HEREBY CANCEL THIS TRANSACTION.

_____[Date].

Lessee's Signature:

Please print name: _____

EXHIBIT D (ACH Authorization Agreement)**Optional Authorization Agreement for Pre-Authorized Payments**

I, Anshuman Rudra and ("Customer"), intend to enter into a lease agreement with SunPower Capital, LLC ("SunPower") to finance a solar system on my home. To facilitate the payments associated with this lease ("Lease") between SunPower and me, by signing below I hereby authorize SunPower to initiate debit and credit entries to the checking account indicated below. I also authorize the financial institution named below to enter such debits or credits to such account.

Bank Name: Bank of America

Account Type: Checking

Routing No.: 011900571

Account No: *****

I understand that SunPower will process debit and credit entries to the above referenced account on or after the due date of each monthly payment in an amount equal to my most recent statement, except as expressly agreed to between SunPower and me.

I represent to SunPower that all persons whose signatures are required to withdraw funds from the above referenced account have executed this authorization agreement. I also hereby acknowledge that I have retained a copy of this authorization agreement for my records.

I hereby acknowledge that SunPower may process debit and credit entries for scheduled Lease rental payments or any other sum due and payable to SunPower or Customer pursuant to the referenced Lease between SunPower and me. I will receive advance notice of any debit that varies from the regularly scheduled Lease rental payment amount. I also acknowledge that SunPower may assign the Lease to a third-party financing source and that the assignee may then initiate debit and credit entries per this authorization.

If a payment is returned unpaid, SunPower may resubmit it up to the number of times permitted by law and bank rules. I understand that my bank may impose a fee for returned payments. SunPower may also cancel my authorization if a payment is returned unpaid. In order to avoid returned payments, I agree to provide SunPower immediately with updated information regarding the account identified above.

Customer hereby acknowledges that this agreement will not be terminated until the Lease is paid in full, or the Customer provides verbal (please contact SunPower at (800) 786-7693) or written notification to cancel this authorization agreement and has allowed SunPower a reasonable amount of time to act upon the request. The termination of this authorization agreement does not terminate the fully enforceable Lease or your obligation to make the required Lease rental payments.

Customer: 

Name: Anshuman Rudra

Date: 1/16/2023

EXHIBIT E (Fannie Mae B2-3-04)

The following explains why this Lease complies with Fannie Mae B2-3-04: Special Property Eligibility Considerations (Properties with Solar Panels)

We have designed our residential leasing program to comply with the requirements of Fannie Mae B2-3-04: Special Property Eligibility Considerations (Properties with Solar Panels) (the "Requirements").

In accordance with the Requirements, the Property may maintain access to an alternate source of electric power that meets your community's standards.

Furthermore, pursuant to the Requirements, the Monthly Payments owed under the Lease should not be included in your debt-to-income (DTI) ratio calculation because the Lease:

- provides delivery of a specific amount of energy at a fixed payment during a given period, and
- includes a production guarantee that compensates you on a prorated basis in the event the System fails to meet the energy output guaranteed under the Lease for a specified period, subject to such production guarantee's terms and conditions.

More specifically, in exchange for your prescribed 240 Monthly Payments specified in the Lease, the Lease provides a 20-year production guarantee that guarantees the System will generate a specified Production Guarantee of kilowatt-hours (kWh). If at the end of each successive 24-month anniversary of your Lease term, the Actual Biennial kWh generated by the System is less than the specified Production Guarantee of kWh, then you will be entitled to a refund in an amount equal to the difference between the Production Guarantee of kWh and the Actual Biennial kWh, multiplied by the rate per kWh specified in the Lease's production guarantee.

Our Acknowledgement. We hereby acknowledge the Security Instrument made by Property Owner to Lender, Lender's rights under the Security Instrument and Lender's perfected first priority lien on the Real Property. We hereby further acknowledge and agree that We do not have a lien on the Real Property, and that We only have an interest in the System pursuant to the Lease.

We agree to comply with the current Fannie Mae selling guide and FHA requirement 24 CFR § 203.41, which only applies to the sale of the Real Property and not the System, which is the personal property of the Us.

Representation; Covenant. We represent and warrants that We are the owner of the System and that the System does not constitute a fixture on any portion of the Real Property or Residence covered by the lien of the Security Instrument.

If We remove all or any portion of the System upon termination of the Lease or at any other time or for any other reason, We will repair and restore the roof and other applicable parts of the Residence to a sound and watertight condition that is architecturally consistent with the rest of the Residence.

We will cover damage to the residence caused by faulty installation, malfunction, or other manufacturing defects whether or not covered by the Lease, and the Fixture Filing does not make the home ineligible for FHA insurance.

Furthermore, We will not impede any sale of the Real Property.

Subordination. Without limiting Our rights to the System under the Lease, Property Owner, We and Lender hereby agree, to the extent that We are deemed to have a lien on any portion of the Real Property that such lien shall be subject and subordinate in all respects to the Security Instrument.

Transfer after Foreclosure. If the interest of Property Owner in the Real Property shall be transferred to Lender or any transferee of Lender by reason of foreclosure, trustee's sale, deed in lieu of foreclosure or other proceeding for the enforcement of the Security Instrument (such transferee, its successors and assigns, including, but not limited to, Lender, shall hereinafter be referred to as "Purchaser"), Purchaser shall have the option to enter into a new Lease/agreement with the third party, under terms no less favorable than the prior owner or have the option to assume the existing Lease. If the Lender or subsequent purchaser elects to not assume the contract, then We will remove the System at no cost to the Lender or Purchaser.

Lender has the right to become the beneficiary of the borrower's Lease/agreement with the third party without charge

Transfer after Sale. If the interest of the Property Owner in the Real Property shall be transferred to a homebuyer in connection with the Property Owner's sale of the Real Property, then where permitted by the local utility, such homebuyer may either (a) purchase the System or (b) assume the Lease on the condition that the homebuyer either (i) complies with Our then applicable credit requirements in accordance with terms and conditions of the Lease or (ii) qualifies for a mortgage to purchase the Real Property.

Insurance. We confirm and agree to maintain a general liability insurance policy that covers damage to the Residence caused by faulty installation, malfunction, or other manufacturing defects, whether or not covered by the warranty. We must not be named loss payee or named insured on the Property Owner's property insurance policy.

Further Actions. Property Owner covenants and agrees from time to time to do all acts and execute such instruments as it shall be requested to do by Lender or Us for the purposes of carrying out and effectuating this Lease and the intent hereof, and evidencing this Lease, whether by filing with any public office, or agency or otherwise.

Modification of Agreement. This Lease may not be modified orally or in any other manner except by an agreement in writing signed by the parties hereto or their respective successors in interest.

Successors and Assigns. This Lease shall inure to the benefit of and be binding upon the parties hereto and their respective heirs, successors and assigns.

Governing Law. This Lease shall be governed by and construed under the laws of the State in which the Real Property is located.

Counterparts. This Lease may be executed in counterparts, and all counterparts together shall be construed as one document.